

SENATE BILL 1986

By Hensley

AN ACT to amend Tennessee Code Annotated, Title 38, Chapter 7 and Title 68, Chapter 30, relative to anatomical gifts.

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF TENNESSEE:

SECTION 1. Tennessee Code Annotated, Section 38-7-108(c), is amended by deleting the subsection and substituting:

(1)

(A) If a body is subject to post-mortem examination under this part, then this part is suspended, except as provided in this subsection (c), to the extent necessary for the preservation of any body or part of the body, as defined in § 68-30-102, where an anatomical gift of the body or part of the body has been made in accordance with the Uniform Anatomical Gift Act, compiled in title 68, chapter 30, part 1.

(B) A medical examiner may deny the procurement of an anatomical gift in whole or in part if the medical examiner reasonably believes that the removal would:

- (i) Compromise the integrity of the forensic investigation;
- (ii) Destroy or obscure evidence relevant to determining cause, manner, or circumstances of death;
- (iii) Delay the autopsy unreasonably; or
- (iv) Otherwise conflict with the medical examiner's statutory duties or ethical obligations.

(2)

(A) An anatomical gift shall not be procured or removed from the body prior to a post-mortem examination under this part without express written authorization from the medical examiner having jurisdiction over the case.

(B) If there is a disagreement between the procurement organization and the medical examiner regarding such authorization, then the medical examiner's decision must prevail.

(3) The medical examiner shall consider any request to recover an anatomical gift made by a federally designated procurement organization operating in this state and may authorize the recovery of an anatomical gift when, in the examiner's judgment:

(A) The removal will not interfere with the determination of cause and manner of death;

(B) The anatomical gift to be removed is not directly involved in the suspected fatal pathology;

(C) Sufficient documentation exists to preserve necessary forensic evidence prior to removal, which includes photographs and radiographs; and

(D) The removal will not interfere with a solid factual foundation for an expert opinion.

(4)

(A) The medical examiner may set any reasonable condition prior to the procurement of an anatomical gift that a procurement organization must adhere to, including the participation of forensic personnel during the procurement.

(B) The medical examiner may request the procurement organization to conduct any additional test not normally contemplated for donor screening purposes.

(5)

(A) Prior to procuring an anatomical gift, the procurement organization shall provide the medical examiner in possession of the body with the following:

- (i) A list of the anatomical gifts to be recovered;
- (ii) Anticipated surgical approach and timing; and
- (iii) Assurance that the procurement team will comply with any conditions set by the examiner.

(B) Following procuring the anatomical gift, the procurement organization shall provide to the medical examiner with jurisdiction over the case the following:

- (i) Overall photographs of the front and the back of the body in addition to closeup images of significant identifiers and injuries;
- (ii) Blood and other body fluids taken from the body at the time of admission to the hospital in order to complete forensic testing;
- (iii) Test results from the additional testing conducted by the procurement organization, if requested by the medical examiner; and
- (iv) A copy of any records generated from activities conducted on the body.

(6) A medical examiner who, in good faith and within the scope of the medical examiner's professional duties, authorizes, limits, or denies the procurement of an anatomical gift pursuant to this subsection (c) is immune from civil, criminal, or administrative liability, including disciplinary action by any licensing board or state agency, for such decision.

(7) This section does not prevent a medical examiner from conducting a limited or full autopsy after donation has occurred.

(8) All procurement-related activities must be documented in the autopsy report or case file, including any photographs, written communications, and surgical descriptions of any pre-autopsy procedures.

(9) Any physician, surgeon, undertaker, law enforcement officer, hospital, hospital personnel, or other person who acts in good faith in compliance with this subsection (c) for the purposes established is immune from civil or criminal liability for removing, transplanting, or otherwise preserving such body or part of a body.

(10) This subsection (c) shall govern and supersede any conflicting provisions of law.

(11) The chief medical examiner of the state and the organ procurement agencies serving the state shall develop a protocol for those instances in which this subsection (c) applies. The protocol must be filed with the department of health and must be reviewed and updated as necessary.

SECTION 2. Tennessee Code Annotated, Section 68-30-108(a), is amended by deleting the first sentence and substituting:

Except as otherwise provided in this part and in § 38-7-108, in the absence of an express, contrary indication by the donor, a person other than the donor is barred from making, amending, or revoking an anatomical gift of a donor's body.

SECTION 3. This act takes effect July 1, 2026, the public welfare requiring it.